

STATE OF LOUISIANA

Forty-Second Judicial District Court FOR THE PARISH OF Saint John the Baptist Parish

No.: TEST-BOUNDARY-2026-0000000000000001 Division: Division Z-Long

State of Louisiana

vs.

Maria-Alejandra O'Shaughnessy-Whitfield

MOTION TO SET ASIDE CONVICTION AND DISMISS PROSECUTION

NOW INTO HONORABLE COURT, comes

☒ Defendant, OR

☐ Defendant through undersigned Counsel,

who moves that the conviction pursuant to Louisiana Code of Criminal Procedure

☐ Article 894(B) Misdemeanors, OR

☒ Article 893(E) Felonies

in the above numbered case be set aside and that the prosecution dismissed in accordance with the Code of Criminal Procedure in that the period of the deferred sentence has run and petitioner has successfully completed the terms of his probation.

The mover is further identified below:

DOCKET NUMBER: TEST-BOUNDARY-2026-0000000000000001

CHARGE: Possession of a controlled dangerous substance (La. R.S. 40:967)

DATE OF ARREST: 2018-12-31

ARRESTING AGENCY:

CITY/PARISH OF ARREST: Edgard, Saint John the Baptist Parish

The Mover prays that, after a contradictory hearing with the District Attorney's Office, the Court order the above numbered case be set aside and that the prosecution dismissed in accordance with the Code of Criminal Procedure.

Respectfully submitted,

..... Signature of Attorney for Mover/Defendant

..... Attorney for Mover/Defendant Name

..... Attorney's Bar Roll No.

..... Address

..... City, State, ZIP Code

..... Telephone Number

If not represented by counsel:

..... Signature of Mover/Defendant

Maria-Alejandra O'Shaughnessy-Whitfield Mover/Defendant Name

9876 A Very Long Participant Address Boulevard, Apartment 1204 Address

Reserve, Louisiana 70084-1234 City, State, ZIP Code

985-555-0199 Telephone Number

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RULE TO SHOW CAUSE

IT IS HEREBY ORDERED, that the District Attorney show cause on the _____ day of _____,
20 _____, at _____ o'clock ____m why the foregoing motion should not be granted.

THUS ORDERED AND SIGNED this ____ day of _____, 20 ____ at _____, Louisiana,
_____.

.....
JUDGE

PLEASE SERVE:

1. District Attorney:
2. Attorney for Defendant and/or Defendant: Maria-Alejandra O'Shaughnessy-Whitfield

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ORDER OF DISMISSAL

Considering the Motion to Set Aside Conviction and Dismiss Prosecution, the hearing conducted on the representation of the State of Louisiana of its consent hereto, and that there is no opposition for any good cause appearing herein;

IT IS ORDERED, ADJUDGED AND DECREED that this conviction is set aside and the prosecution dismissed for purposes of expungement.

THUS ORDERED AND SIGNED this ____ day of _____, 20 ____ at _____, Louisiana.

.....

JUDGE

PLEASE SERVE:

1. District Attorney:

2. Attorney for Defendant and/or Defendant: Maria-Alejandra O'Shaughnessy-Whitfield

ARTICLE 987 PARTICIPANT AND FILING INSTRUCTIONS

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

Louisiana Article 987 participant instructions

Prepared for Maria-Alejandra O'Shaughnessy-Whitfield.

What is included

- The mandatory three-part Article 987 statutory instrument: Motion, Rule to Show Cause, and Order of Dismissal.
- Participant and filing instructions included after the statutory instrument.

What this filing does and does not do

This is not an expungement and does not itself clear any record. It is the predicate filing that can convert a completed deferred sentence into a set-aside conviction and dismissed prosecution under Article 894(B) for a misdemeanor or Article 893(E) for a felony. After the Order of Dismissal is signed, return to the Article 977(A)(1) misdemeanor expungement track or Article 978(A)(1) felony expungement track that applies.

Required before filing this Article 987 motion

Check every prefilled neutral participant and case fact against the court record and correct the packet if it disagrees.

The following missing item remains yours alone and is intentionally left blank on the instrument:

Blank on the document | What you must supply

ARRESTING AGENCY | provide arresting agency exactly from the court or arrest record before filing

Conditionally obtain the minute entry or sentencing order showing the deferred sentence under Article 893 or Article 894 from the clerk of the sentencing court wherever the court or district attorney asks to see the basis for the deferral. Check the deferred-sentence date against it.

Conditionally obtain proof of successful completion of probation from the supervising probation office, or the Department of Public Safety and Corrections, Division of Probation and Parole, wherever completion may be questioned, which the committed record says is most cases. Have it before the return date and check your completion answer against it.

Article 978.1 documents for the later felony-expungement step

Article 978.1 does not turn these documents into attachments to this Article 987 predicate motion. If the signed Article 987 order leads to a felony expungement under Article 978, the participant must submit all four actual case documents to the Bureau of Criminal Identification and Information with that later motion. LegalEase does not create them, infer them, or mark them received without a participant upload or an authorized handoff.

Article 978.1 document | Collection status | Validation and next action

Criminal background check | Reported provided - 102 days old and stale at planned filing | Obtain a current background check before the later filing.

District attorney certification | Not provided | Upload the document or hand it to authorized staff before the later filing.

Court minute entries showing final disposition | Reported provided - document still needs review | Make the actual document available for review before the later filing.

Charging instrument | Not provided | Upload the document or hand it to authorized staff before the later filing.

A background check is stale if it will be more than 60 days old when the later expungement motion is filed. The district attorney certification requires content review for both Article 978 statements. Court minutes may be replaced only by a charge disposition report or a clerk letter stating that no such records exist. A charging instrument must be a bill of information, indictment, or affidavit.

Missing, stale, unrecognized, or unreviewed documents block a later Article 978 packet-ready decision. They do not become fabricated attachments and do not change the purpose of this Article 987 filing.

Fields deliberately left blank

- Sign only the unrepresented-mover block after the motion is complete. If you are represented, give the instrument to your attorney; the attorney block belongs to counsel.
- Leave the Rule to Show Cause return date, time, place, and judge signature blank. The court sets them and the clerk supplies the return information.
- Leave the date, place, and judge signature in the Order of Dismissal blank. The statutory proposed-order language stays printed; it has no effect until the judge signs and the clerk enters the order.
- The district attorney's response to the rule belongs to the district attorney and is not a participant field.

Stop and get help

Stop self-help if the district attorney opposes the motion at the contradictory hearing; if there is any dispute whether the deferred-sentence period ran or probation was successfully completed; if the court sets a contested evidentiary hearing; or if you are unsure whether the sentence was deferred under Article 893 or Article 894, or deferred at all.

This built packet is pending independent completeness, raster, visual, and counsel review. It is not approved for live use and opens no route.

Louisiana Article 987 filing instructions

Prepared for Maria-Alejandra O'Shaughnessy-Whitfield.

File the three-part Article 987 instrument - Motion, Rule to Show Cause, and Order of Dismissal - with the clerk of the court that imposed the deferred sentence, in the parish of conviction. Article 986 makes Article 987 the form to be used; Article 986(C) lets a clerk alter it only to show the name of that court.

Ask that clerk for the filing cost before filing. Article 983 governs the cost of an expungement, not this Article 987 set-aside; ordinary motion costs may apply and vary by parish, and the committed record supplies no figure.

Article 987 prescribes no fee waiver. The Article 988 fee exemption is an expungement instrument under Article 983(F) and does not reach this filing.

The Rule to Show Cause is directed to the district attorney. The motion's prayer contemplates a contradictory hearing with the district attorney's office. No sixty-day objection window applies; that scheme belongs to Articles 979 and 980 and governs a motion to expunge.

Service is on the district attorney and on the attorney for the defendant or the defendant. Confirm the clerk's filing-copy and service mechanics, obtain the clerk-set return date, time, and place, and do not fill a court field yourself.

A contradictory hearing, district-attorney opposition, a completion dispute, or a contested evidentiary hearing ends self-help; get legal help rather than continuing on your own.

If the court signs the Order of Dismissal, ask the clerk for a certified copy. That signed order is needed for the later Article 977 or Article 978 expungement track; this Article 987 filing clears nothing by itself.

If the next track is Article 978 felony expungement, Article 978.1 requires four actual participant/case documents with that later motion: a Louisiana State Police or sheriff background check dated within sixty days of filing; the district

attorney certification; court minutes showing final disposition or an allowed substitute; and the charging instrument. Missing, stale, or unreviewed documents stop that later packet from becoming ready.